



Republic of the Philippines  
**MUNICIPALITY OF PRIETO DIAZ**

Prieto Diaz, Sorsogon 4711

LGU TIN: 000794065

Email Address: sbprietodiaz@gmail.com



**Office of the Secretary to the Sangguniang Bayan**

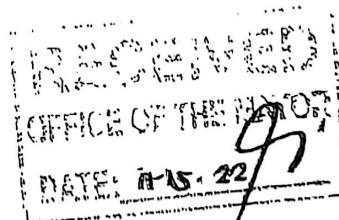
1<sup>st</sup> Endorsement  
November 14, 2022

S90C-11152022-377

|                                 |                |
|---------------------------------|----------------|
| OFFICE OF THE SANGGUNIANG BAYAN |                |
| PRIETO DIAZ, SORSOGON 4711      |                |
| <b>RELEASED</b>                 |                |
| DATE: NOV 15 2022               | TIME: 10:53 Am |
| BY: <i>[Signature]</i>          | REF. NO. 377   |

Respectfully transmitted to Hon. **ROMEO D. DOMASIAN, Ph. D.**, Municipal Mayor, the herein attached Appropriation Ordinance No. 2022-22 entitled: **"AN ORDINANCE APPROVING THE ANNUAL BUDGET FOR FY 2023 OF THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON IN THE TOTAL AMOUNT OF ONE HUNDRED SIX MILLION SEVEN HUNDRED THOUSAND PESOS (P 106,700,000.00) ONLY"** for his information, perusal, approval and appropriate action.

*[Signature]*  
**BERNADETTE R. ESPEÑA – YAO**  
Secretary to the Sangguniang Bayan





Republic of the Philippines  
PROVINCE OF SORSOGON  
Sorsogon City



## SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,  
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

January 19, 2023

TRANSMITTAL NO. **59-2023**

TRANSMITTAL FOR: **THE HONORABLE SANGGUNIANG BAYAN**

Thru: **Ms. BERNADETTE E. YAO**

Secretary to the Sangguniang Bayan

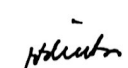
LGU – Prieto Diaz, Sorsogon

Respectfully transmitting a copy of resolution approved by the 11<sup>th</sup> Provincial Board on  
**December 26, 2022 (26th Regular Session)** for your information and reference.

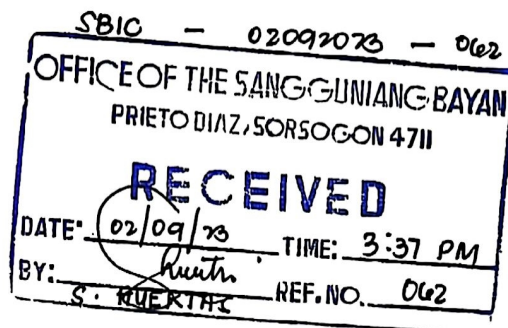
### **RESOLUTION NO. 580-2023**

RESOLUTION DECLARING APPROPRIATION ORDINANCE NO. 2022-22 OF THE MUNICIPALITY OF  
PRIETO DIAZ, SORSOGON OPERATIVE IN ITS ENTIRETY, SUBJECT TO SOME CONDITIONS.

Prepared by:

  
**RHEA T. DIESTA**

Local Legislative Staff Officer III



Noted by:

  
**ATTY. RODOLFO C. DEALCA, JR.**

Secretary to the Sangguniang Panlalawigan



Republic of the Philippines  
**PROVINCE OF SORSOGON**  
Sorsogon City



**SANGGUNIANG PANLALAWIGAN**

*SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,  
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700*

EXCERPT FROM THE JOURNAL OF THE 26<sup>TH</sup> REGULAR SESSION OF THE 11<sup>TH</sup> PROVINCIAL BOARD ON **DECEMBER 26, 2022** AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

**PRESENT:**

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

**1<sup>ST</sup> DISTRICT**

Hon. John Ryan C. Dioneda  
Hon. Maria "Nini" O. Ravanilla  
Hon. Ralph Walter R. Lubiano  
Hon. Edmundo A. Atutubo  
Hon. Rommel John C. Mella

**2<sup>ND</sup> DISTRICT**

Hon. Ramil M. Robles  
Hon. Juan G. Guysayko  
Hon. Benito L. Doma  
Hon. Roland R. Afionuevo  
Hon. Eduardo E. Ong Jr.

**EX-OFFICIO**

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League  
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay  
Hon. Lorenz S. Abenion – Provincial President, Sangguniang Kabataan Federation

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**RESOLUTION NO. 580-2022**

**RESOLUTION DECLARING APPROPRIATION ORDINANCE NO. 2022-22 OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON OPERATIVE IN ITS ENTIRETY, SUBJECT TO SOME CONDITIONS.**

**WHEREAS,** submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Appropriation Ordinance No. 2022-22, entitled: **"AN ORDINANCE APPROVING THE ANNUAL BUDGET FOR FY 2023 OF THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON IN THE TOTAL AMOUNT OF ONE HUNDRED SIX MILLION SEVEN HUNDRED THOUSAND PESOS (P106,700,000.00) ONLY"** for review and appropriate action;

**WHEREAS,** the subject appropriation ordinance reveals substantial compliance to Republic Act No. 7160 and its implementing rules and regulations, subject to the following conditions:



1. That the utilization and implementation of the appropriated amount for 3<sup>rd</sup> Tranche Modified Salary Adjustment should conform to the provision of Local Budget Circular No. 143 (Implementation of the Third Tranche of the Modified Salary Schedule for Local Government Personnel Pursuant to Republic Act No. 11466), dated January 3, 2022;
2. That the step-increment should be granted to those qualified personnel and elective officials for every 3 years of continuous satisfactory service, subject to the guidelines of CSC, DBM Joint Circular No. 1, Series of 2012, dated September 3, 2012 and Joint CSC-DBM Circular No. 1, Series of 2016;
3. That premium contribution for PHILHEALTH should be in accordance to the PHILHEALTH Circular No. 2019-009 premium contribution for CY 2023;
4. That all positions in the LGU should be allocated to their proper position titles and salary grades in accordance to Local Budget Circular No. 137 (Index of Occupational Services Position Titles and Salary Grades in the Local Government (IOS-LGU), CY 2021 Edition). Further, modification of nurse position, particularly for Nurse II position should be in accordance to Budget Circular No. 2021-2, dated August 25, 2021.
5. That grant of other compensation and other benefits to officials and employees should be subject to pertinent circulars and issuances on that matter;
6. Unfunded vacant positions are deemed abolished since there is no appropriations to back-up the legal existence, pursuant to Section 5.3 of LBC No. 96, dated October 14, 2011;
7. That appropriation for Terminal Leave Benefits should adhere to the existing provisions of Budget Circular No. 2013-1, dated April 12, 2013 and Budget Circular No. 2016-2, dated March 29, 2016. Further, payment for terminal leave pay should be given priority to mandatory retirees and should not be utilized for other purposes;
8. That grant of Magna Carta benefits to Public Health Workers (PHWs) and Public Social Workers (PSWs) shall be governed by DBM-DOH Joint Circular No. 1, Series of 2012, regarding the Rules and Regulations on the Grant of Compensation related Magna Carta Benefits of Public Health Workers, as amended by DBM-DOH Joint Circular No. 1, Series of 2016, dated July 15, 2016 and DBM-DSWD Joint Circular No. 1, Series of 2018, dated December 27, 2018 for Public Social Workers;
9. Procurement of goods, supplies, equipment and other capital outlays should adhere to the provision of A.O. No. 17, R.A. No. 9184 (Government Procurement Act) and its Implementing Rules and Regulations and should be included in the Annual Procurement Plan (APP), Project Procurement Management Plan (PPMP) and Annual Investment Program (AIP) duly approved by the local chief executive before any disbursement be made. Tangible items below Fifty Thousand Pesos (P50,000.00) should be accounted as semi-expandable property in accordance to COA Circular No. 2022-004, dated May 31, 2022;
10. The acquisition of real property should adhere to the pertinent provisions of R.A. No. 10752, entitled: "An Act Facilitating the Acquisition of Right-of-Way Site or Location for National Government Infrastructure Projects" and other applicable laws, rules and regulations;



96



11. That Gender and Development (GAD) Plan and Budget should be prepared and approved by the local development council and the sangguniang bayan, pursuant to PCW-DILG-DBM-NEDA Joint Circular No. 2016-01, dated January 12, 2016, as well as approved by the DILG five (5%) of the FY 2023 Budget attributed in the regular programs, projects and activities of the municipality;
12. That the plans and budget for PWDs, senior citizen and local council for the protection of children should be attributed in the regular programs, projects and activities of the LGU's as prescribed by law;
13. That purchase of motor vehicles and other transportation equipment should comply to the requirements prescribed under DBM Circular No. 2022-1 (Omnibus Guidelines on the Acquisition, Use, Rental and Replacement of the Government Motor Vehicles), dated February 11, 2022;
14. That projects to be implemented under the 20% Economic Development Fund should be in the approved Local Development Investment Plan and Annual Investment Program should be disbursed in accordance to DILG-DBM Joint Circular No. 1, dated November 4, 2020 and other existing budgeting, accounting and auditing rules and regulations;
15. That appropriation for the 5% Local Disaster Risk Reduction Management Fund should adhere to the approved LDRRMF Plan of the municipality per R.A. No. 10121 and its IRR and NDRRMC-DBM-DILG Joint Memorandum Circular No. 2013-1, dated March 25, 2013 and should be disbursed in accordance to the existing rules and regulations for the purpose;
16. That appropriation intended for election expense should be subject to Section 50 of the COMELEC Omnibus Election Code;
17. That programs, projects and activities identified to be implemented under the annual budget are only those indicated in the approved CY-2023 Annual Investment Program. Further, strict observance on the preparation and approval of the AIP which should be before the start of the local budget preparation phase as prescribed under Local Budget Circular No. 112, dated June 10, 2016, prescribing the adoption of the 2016 Budget Operation Manual (BOM) for LGU's;
18. That disbursement of appropriations herein authorized should be subject to usual accounting and auditing rules and regulations.
19. Appropriation intended for programs, projects, services and activities of the municipal government should be disbursed in accordance to Section 444 b(1) of R.A. No. 7160 which provides partly, that: "xxx the municipal mayor as the chief executive of the municipal government, shall exercise general supervision and control over all programs, projects, services and activities of the municipal government xxx."

**NOW, THEREFORE**, on motion of Hon. Edmundo A. Atutubo, jointly seconded by Hon. Ramil M. Robles and Hon. Maria "Nini" O. Ravanilla, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE APPROPRIATION ORDINANCE NO. 2022-22 OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON OPERATIVE IN ITS ENTIRETY** effective as of the date fixed in its enabling ordinance, subject to the posting requirements, and pursuant to the provisions under Section 59 of R.A. No. 7160 with the conditions stated above;

**RESOLVED FURTHER**, to require the municipality to comply to the herein conditions and notify this sangguniang panlalawigan of actions taken thereon;

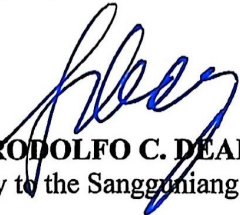
**RESOLVED FINALLY**, to inform the municipality that this review action does not authorize any item of appropriation that is specifically prohibited by or inconsistent with the provisions of law.

**LET COPIES** of this resolution be furnished Provincial Budget Officer Ma. Cristina M. Labay, Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information, guidance and appropriate action.

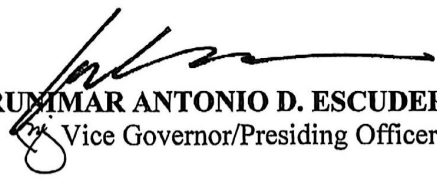
**APPROVED.**

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**I HEREBY CERTIFY** to the correctness of the foregoing.

  
**RODOLFO C. DEALCA JR.**  
Secretary to the Sangguniang Panlalawigan  
41

**ATTESTED:**

  
**HON. KRUMMAR ANTONIO D. ESCUDERO II, MDMG**  
Vice Governor/Presiding Officer